

DECLARATION

We, the duly elected City Council of the City of Medford, Massachusetts, declare under penalty of perjury that the following facts are true and correct:

1. While the City Council has provided input and direction to appointed legal counsel on numerous occasions during the CHERTOK litigation, the City Council's input has not in general been reflected in the City's litigation positions, and the Council has continued to have significant concerns regarding the City's posture in this litigation.
2. As of September 10, 2026, the City Council has yet to be officially notified of or consulted regarding the filing of a so-called stipulation in the litigation on August 27, 2026, which appears to request the Courts enter final judgment against the City and enjoin it from enforcing a duly enacted ordinance, neither shown or claimed by the City to be unlawful.
3. In April, Plaintiffs in the CHERTOK case moved for preliminary injunction against the City enforcing or otherwise implementing the ordinance in dispute in the case.
4. The response to the Plaintiffs' motion for preliminary injunction, filed by the appointed legal counsel of the City and against the wishes of the City Council, assented to the injunction against enforcing ordinances duly enacted by the City Council and not shown to be unlawful.
5. The City's response further stated to the Court, in public filing, that the City had intentionally and knowingly raised funds prior to any litigation or notice of litigation in direct violation of the ordinance now in dispute.
6. The City Council believes the stipulation and assenting response to Plaintiffs' motion for preliminary injunction in the CHERTOK litigation reflect the divergence between the City Council's position and the legal position presently being taken on behalf of the City, which in the City Council's view potentially exposes the City to additional and unnecessary risk of litigation and further liabilities.
7. The filed stipulation raises financial concerns as its sole rationale for requesting that the Court force the City into a position in which it would be in violation of its own duly enacted ordinance in the raising of funds and thus exposed to a substantial increased risk of litigation.
8. In particular, the filed stipulation alleges that the City has to date spent \$35,000 dollars in the defense of the CHERTOK litigation.
9. In April, the City Council publicly held a Special Meeting, at the request of the Mayor, in which it voted by overwhelming majority to request that the Mayor allocate no less than \$75,000 to the defense in the CHERTOK litigation.
10. The City Council, as the legislative body of the City of Medford and under the Medford city charter, exercises significant authority concerning the approval and appropriation of municipal funds.
11. Before the August 27 Stipulation was filed, neither the City's appointed counsel nor the Mayor presented the City Council with an accounting of litigation expenses or requested that the City Council consider whether additional funds should be appropriated for the continued defense in the CHERTOK litigation.

12. Had the City Council been consulted regarding the financial concerns identified in the Stipulation, the City Council would have expressed its view that the approximately \$35,000 in costs identified there did not justify abandoning the defense in the CHERTOK litigation.
13. The City Council remains willing to consider the appropriation of additional funds reasonably necessary to continue defending in the CHERTOK litigation.
14. The City Council supports intervention by the Proposed Intervenors to permit a defense in the CHERTOK litigation to continue and would likewise support participation by the Massachusetts Attorney General in defending the case.

Signed:

Isaac B. Zac Bears, Council President

Emily K. Lazzaro, Council Vice President

Anna Callahan, City Councilor

Matt Leming, City Councilor

Liz Mullane, City Councilor

George A. Scarpelli, City Councilor

Justin Tseng, City Councilor

Dated: September 15, 2026